

26STCV02595 26STCV02595

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-07-21

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Case Number: 26STCV02595 Hearing Date: July 21, 2026 Dept: 512

HEARING DATE: Tues., July 21, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Nora

v. Western Fidelity Trustees, et al. COMP.

FILED: 01-26-26

CASE NUMBER: 26STCV02595

NOTICE:

NO

PROCEEDINGS: MOTION TO BE RELIEVED AS COUNSEL

MOVING PARTY: Counsel

Sarah Shapero for Plaintiff Linda Marie Nora

RESP. PARTY: None

MOTION TO BE RELIEVED AS COUNSEL

(CCP § 284, CRC, rule 3.162)

TENTATIVE RULING:

Counsel Sarah Shapero's Motion to be

Relieved as Counsel for Plaintiff Linda Marie Nora is CONTINUED to August 27,

2026 at 8:30 a.m. in the Stanley Mosk Courthouse.

At least

16 court days prior to the next scheduled hearing, Counsel is to file and serve

supplemental papers addressing the deficiencies noted herein.

The moving party must also submit a

corrected MC-053 form: "Order Granting Attorney's Motion to Be Relieved" providing

all accurate dates including the hearing on Order to Show Cause Re: Failure to

File Proof of Service and Sanctions up to \$250.

Plaintiff's Counsel is ordered to give

notice.

SERVICE:

☐

Proof of Service Timely Filed (CRC, rule 3.1300) OK

☐ Correct Address (CCP §§ 1013, 1013a) OK

☐ 16/21 Court Days Lapsed (CCP §§ 12c,

1005(b)) OK

OPPOSITION: None

filed as of July 16, 2026 ☐ Late ☒

None

REPLY: None

filed as of July 16, 2026 []

Late [X] None

ANALYSIS:

I.

Background

On January 26, 2026, Plaintiff Linda

Marie Nora ("Plaintiff") filed the instant action against Defendants Western

Fidelity Trustees; Burim International, Inc.; and Edward Choi ("Defendants")

and Does 1-50, alleging causes of action for Breach of Contract, Professional

Negligence, Fraud, Declaratory Relief, Temporary Injunction, and Punitive

Damages. (Compl., p. 1.)

On June 24, 2026, Counsel for Plaintiff,

Sarah Shapero ("Counsel") filed and served the instant Motion to be Relieved as

Counsel for Plaintiff Linda Marie Nora (the "Motion").

On July 13,

2026, the Court continued the hearing on the Motion. (7/13/26 Order.)

No Opposition

has been filed.

II.

Procedural

Issues

As an initial matter, the Court finds

the Motion is untimely filed and served by mail under Code of Civil Procedure

section 1005.

Further, there is no proof of service

filed demonstrating Counsel served notice of the continued hearing date on

Plaintiff following the Court's 7/13/26 continuance order. (See 7/13/26 Order.)

III.

Legal

Standard

Code

of Civil Procedure section 284 states that "the attorney in an action...may be

changed at any time before or after judgment or final determination, as

follows: (1) Upon the consent of both client and attorney...; (2) Upon the order

of the court, upon the application of either client or attorney, after notice

from one to the other." (Code Civ. Proc., § 284; Cal. Rules of Court, rule

3.1362.) "The determination whether to

grant or deny a motion to withdraw as counsel lies within the sound discretion

of the trial court.” (Manfredi & Levine v. Superior Court (1998) 66

Cal.App.4th 1128, 1133); see Lempert v. Superior Court (2003) 112

Cal.App.4th 1161, 1173.)

An application

to be relieved as counsel must be made on Judicial Counsel Forms MC-051 (Notice

of Motion and Motion), MC-052 (Declaration), and MC-053 (Proposed Order). (Cal.

Rules of Court, rule 3.1362, subds. (a), (c), (e).)

In addition,

California Rules of Court, rule 3.1362 subsection (d) requires that the notice

of motion and motion, declaration, and proposed order be served on the client

and all other parties who have appeared in the case by personal service,

electronic service, or mail. If the notice is served by electronic service, it

must be accompanied by a declaration stating that the electronic service

address is the client's current electronic service address. (Cal. Rules of

Court, rule 3.1362, subd. (d)(2).) As used in this rule, “current” means:

“[T]he address

was confirmed within 30 days before the filing of the motion to be relieved.

Merely

demonstrating that the notice was sent to the client's last known address and

was not returned or no electronic delivery failure message was received is not,

by itself, sufficient to demonstrate that the address is current.”

(Cal. Rules of

Court, rule 3.1362, subd. (d).)

IV.

Discussion

On June 24,

2026, Counsel moved the Court to

be relieved as attorney of record for Plaintiff. (MC-051.) Counsel filed

MC-051, MC-052, and MC-053 Forms. (Cal. Rules of Court, rule 3.1362,

subds. (a), (c), (e).)

Counsel seeks to be relieved on the following

grounds: “There has been a breakdown of the relationship with client and a

material term or terms of the underlying agreement between client and Shapero

Law Firm, P.C. such that SLF cannot continue its representation.” (MC-052, ¶

2.)

The Court is satisfied with Counsel's

reasons for seeking to be relieved. (Cal. Rules of Professional Conduct, rule

1.16.)

However, the Court finds the Motion's

service and notice of hearing defective, as discussed above. Additionally, the

MC-053 form: "Order Granting Attorney's Motion to Be Relieved" does not provide accurate dates and omits the hearing on Order to Show Cause Re: Failure to File Proof of Service and Sanctions up to \$250.

Accordingly, Counsel's Motion is

CONTINUED.

V.

Conclusion & Order

Counsel Sarah Shapero's Motion to be

Relieved as Counsel for Plaintiff Linda Marie Nora is CONTINUED to August 27, 2026 at 8:30 a.m. in the Stanley Mosk Courthouse.

At least 16 court days prior to the

next scheduled hearing, Counsel is to file and serve supplemental papers addressing the deficiencies noted herein.

The moving party must also submit a

corrected MC-053 form: "Order Granting Attorney's Motion to Be Relieved"

providing accurate dates including the hearing on Order to Show Cause Re:

Failure to File Proof of Service and Sanctions up to \$250.

Plaintiff's Counsel is ordered to give

notice.